

Amit v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 December 2019 · Writ - C No. 39812 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5 before the Executive Engineer.**

HEADNOTE

A writ seeking restoration of supply and revision of a 15.06.2017 electricity bill is not entertained where the consumer disputes bill correctness. The statutory remedy is Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. If the consumer applies within two weeks, the application is to be decided by a speaking order after hearing, within three weeks of a certified copy; no coercive action for 40 days.

FACTUAL SUMMARY

Amit, a consumer of U.P. Power Corporation Ltd., filed a writ petition in the Allahabad High Court seeking mandamus to restore electricity to his house, to revise a bill dated 15 June 2017, and to decide his representation dated 5 November 2019. He disputed the correctness of the bill raised against him. Counsel for the Corporation appeared. Restoration of supply and revision of that bill were the live grievances; the Court did not try those claims on the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A dispute as to the correctness of an electricity bill is to be pursued under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. The High Court will not entertain a writ for restoration of supply or revision of the bill when that statutory remedy is available. If the consumer approaches the Executive Engineer within two weeks, the application is to be considered and decided in accordance with law by a speaking order after hearing, within three weeks of receipt of a certified copy; no coercive action shall be taken for 40 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 15.06.2017

Left to the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — WHETHER ELECTRICITY SUPPLY TO THE PETITIONER'S HOUSE SHOULD BE RESTORED

¶ 1

NOT DECIDED — MERITS OF THE REPRESENTATION DATED 5.11.2019

¶ 1